

Council Meeting
February 15, 2017
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The Claremont City Council held a meeting on Wednesday, February 15, 2017, in the Council Chambers of City Hall.

Non-meeting pursuant to RSA 91-A:2I(a) was held at 6:00 p.m.

The Council meeting was called to order by Mayor Lovett at 6:34 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Mayor Charlene Lovett
At-Large Councilor Allen Damren
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Absent:

Assistant Mayor Victor Bergeron
At-Large Councilor Bruce Temple

Also present were:

Ryan McNutt, City Manager
Jane Taylor, City Solicitor

AGENDA CHANGES

Mr. Damren proposed to not take any action tonight on Resolutions 2017-26 Establish Emergency Plant Replacement Reserve-Water; 2017-27 Establish Emergency Plant Replacement Reserve-Sewer; 2017-28 Establish Stabilization and Contingency Reserve-Water; 2017-29 Establish Stabilization and Contingency Reserve-Sewer; 2017-30 Establish System Replacement Reserve-Water; and 2017-31 Establish System Replacement Reserve-Sewer; and to take them up only after Council has had a chance to review the audit and to do the work on the water and sewer budgets. Council concurred.

REPORT OF THE SECRETARY

A motion was made by Ms. Towle and seconded by Mr. Simonds to accept the minutes of the January 11, 2017, City Council meeting.

Voice vote: motion carried 7-0.

A motion was made by Mr. Damren and seconded by Mr. Raymond to accept the minutes of the January 24, 2017, City Council meeting as amended.

Mr. Simonds said he was listed as present, but he was not at that meeting.

Voice vote: motion carried 6-0 with 1 abstain (Mr. Simonds).

A motion was made by Mr. Simonds and seconded by Ms. Towle to accept the minutes of the January 25, 2017, City Council meeting.

Voice vote: motion carried 7-0.

MAYOR'S NOTES

Mayor Lovett thanked Public Works for doing a good job with snow removal while also fixing a water main break on Whitcomb Lane during the snow storm.

Mayor Lovett said House Bill 413, relative to payment by the state of a portion of retirement system contributions of political subdivision employers, was approved by the full House and now has to go to the House finance committee, Senate, etc.

Mayor Lovett said HB525, relative to stabilization grants for education has been retained in committee.

Mayor Lovett said HB413 would mean hundreds of thousands of dollars for Claremont. Regarding the NH Retirement System, NHMA (NH Municipal Association) will make a presentation at the February 22nd Council meeting.

Mr. Damren said that Kerry Holmes from Senator Maggie Hassan's office would have open office hours on February 16th, 2-4 p.m., in Council Chambers.

Mayor Lovett said she and Mr. McNutt would meet with Congresswoman Kuster on February 23rd to tour Canam and discuss the Amtrak preclearance facility.

CITY MANAGER'S REPORT

Mr. McNutt said he will have a report at the March meeting.

Mr. McNutt said he is excited to be in Claremont. He has an apartment in Claremont and is 100% the Claremont City Manager. He offered to help Lancaster transition, if needed, but they haven't needed him. He has had wonderful introductions and discussions with residents. He has been 100% impressed with the City department heads and staff who are really professional, knowledgeable, and gracious.

Ms. Towle said on the Welfare report that Rents had increased \$10,000 over 2015 and a payment of property taxes of about \$6,000; she would like an explanation of the increase. Also, she pointed out the City is holding \$19,000 for 23 clients pending inspection and Code compliance. Mr. McNutt said some of the increase is due to the delay of the IRS processing tax return checks. He will follow-up with this. Ms. Towle asked about the workforce program and how successful that is for repayment.

Mayor Lovett talked about CSB Community Center memberships and since April 2016 to now, the total memberships have ranged between 1632 and 1683. She said that is about a 250 membership drop from before that period. She would like to know why the numbers have gone down.

Mayor Lovett would like an update of the Viewpoint Software that was in the Planning and Development report.

Mayor Lovett thanked Planning and Development for the documentation of the increases of permits and inspections, and she appreciates the list of enforcement actions being done in Planning and Development.

Planning and Development Director Nancy Merrill said her department is building the forms for the Viewpoint Software. They plan to roll out the building permits and food licensing portion in March.

Mr. Koloski appreciated having the Claremont Development Authority minutes in the packets.

Mr. Pope asked for a year-end summary of new properties that have been added (i.e. business parks), challenges for businesses and opportunities that Ms. Merrill sees.

Mr. McNutt pointed out Jarvis Auto Machine is a new business at 13 Bowen and that Sugar River Pharmacy has a new location at 109 Pleasant Street.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Development Authority

A motion was made by Mr. Simonds and seconded by Mr. Raymond to re-appoint Robert Porter to seat 2 of the Claremont Development Authority.

Voice vote: motion carried 7-0.

A motion was made by Mr. Pope and seconded by Mr. Raymond to re-appoint Andre Lafreniere to seat 3 of the Claremont Development Authority.

Voice vote: motion carried 7-0.

Zoning Board of Adjustment

A motion was made by Mr. Damren and seconded by Mr. Simonds to re-appoint Carolyn Towle to seat 4 of the Zoning Board of Adjustment.

Voice vote: motion carried 6-0 and 1 abstain (Ms. Towle).

CITIZEN'S FORUM

Bernie Folta, Ward 3, welcomed City Manager McNutt. He asked what Mr. McNutt will do in his first 100 days which expires May 11th. He suggested there be an appointed citizens' committee to approve effectiveness, efficiency and innovation in Claremont municipal government. He hopes Mr. McNutt moves Claremont forward.

NEW BUSINESS

Resolution 2017-24 Accept & Expend LCHIP Money – Public Hearing

The City Council by motion approved on June 8, 2016, authorized the city manager, or his designees, to apply for and, if awarded, accept a Land and Community Heritage Investment Program (LCHIP) grant for the purpose of performing a City Hall/Claremont Opera House Historic Building Assessment (the Project). The City has been awarded and has accepted the LCHIP Grant in the amount of up to \$10,000.00 to undertake the Project. The City would now like to expend said LCHIP grant funds for their intended purpose. The City is required to provide \$10,500.00 in matching funds. This is to raise, appropriate and expend up to \$20,500.00, with up to \$10,000.00 to be received from LCHIP grant funds (to have no impact on the tax rate), and up to \$10,500.00 to come from money already appropriated in the 2017 budget for the purpose of performing a City Hall/Claremont Opera House Historic Building Assessment.

Ms. Merrill said Kurt Beek, Project Manager, spoke about this in June. The City has been awarded the grant. Matching funds are included in the current budget. The grant is to do an assessment of this building. The assessment is needed before you can apply for grant money for the copper roof.

Mayor Lovett questioned the extra \$500.

Ms. Taylor said they only fund up to \$10,000 and the actual amount is \$20,500. There can be a soft match to make up the difference.

A motion was made by Mr. Simonds and seconded by Mr. Damren to adopt Resolution 2017-24 Accept & Expend LCHIP Money.

Mr. Simonds read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote: motion carried 7-0.

Motion to Re-establish Section of Pearl Street ROW

Ms. Taylor said the records on the 1983 relocation to a portion of the Pear Street ROW north of Main Street are not clear. This ambiguity was uncovered as part of the re-development of the adjacent property. This will make the right-of-way clear. This is a corrective action.

Ms. Merrill said the minutes of November 9, 1983, were clear that this was a public street.

Ms. Taylor said if Council approves it, a certified notice will be sent to the abutters, Secretary of State and the City Clerk's office.

Mayor Lovett said this has gone to the Planning Board.

Ms. Taylor said this also incorporates limits of Main Street as they've been reestablished.

A motion was made by Mr. Raymond and seconded by Ms. Towle that

Whereas, over time, the original highway boundaries of Pearl Street from its intersection with Main Street northerly towards the Sugar River have become lost, uncertain or doubtful because of a lack of clarity in the City's acceptance of a revised layout of this section of the Pearl Street right-of-way as part of the redevelopment project in the early 1980's for what is now referred to as Sugar River Mills; and

Whereas, property owners abutting this section of the Pearl Street right-of-way need certainty as to their access to the public right-of-way; and

Whereas, pursuant to RSA 231:27, the City Council may reestablish the boundary lines, limits and locations of the City's public highways;

Now therefore, the City Council hereby authorizes the reestablishment of the highway boundary lines of a portion of Pearl Street from its intersection with Main Street northerly towards the Sugar River; and

The City Council further authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to reestablish this portion of Pearl Street pursuant to the procedures set forth in RSA 228:35.

Voice vote: motion carried 7-0.

Motion to Declare Portion of Former Pearl Street ROW Surplus and Convey to Abutter

Ms. Taylor said this was related to the previous motion just adopted. The area has not been used or maintained by the City. It is an orphaned piece of land. The abutter would like to be able to continue to use the piece of land. It has not been used as a roadway since the 1980s. A Quitclaim will convey any remaining rights the City may have to the abutter.

A motion was made by Mr. Damren and seconded by Mr. Simonds that

Whereas a portion of the former Pearl Street right-of-way, easterly of its intersection with Main Street, comprising approximately 1,200 square feet, is not a part of the reestablished Pearl Street right-of-way and has not been maintained by the City or used as a traveled portion of Pearl Street or of the public right-of-way since 1983; and

Whereas the land underlying this abandoned portion of the public right-of-way belongs to the abutting property owner;

Now therefore, the City Council hereby declares this portion of the former Pearl Street to be abandoned and declares it completely discontinued; and

The City Council further authorizes the conveyance of any rights it may have to pass over this discontinued portion of the former Pearl Street right-of-way to the abutting property owner; and

The City Council further authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to implement this motion.

Voice vote: motion carried 7-0.

Resolution 2017-25 Authorize Removal of Covenants from 106 Broad Street – Public Hearing

In 1972, the City deeded the land under the then-First Universalist Church to the Church, said deed including various covenants restricting the property's use that were required by vote of the City Council on October 13, 1971, said deed having been recorded at the Sullivan County Registry of Deeds at Vol. 510, Page 43. In 1989, the City reacquired the land and building located at 106 Broad St. (Parcel 120-156), said deed having been recorded at said Registry at Vol. 897, Page 087. The building has been unused by the City, except for storage, for a number of years, does not meet state or federal codes for public use and is not readily adaptable for use by the City. The building itself is historic in nature and of strikingly beautiful architecture, and is a property that the City would like to see rehabilitated and put to a productive use. The City will need to offer the property for sale in order to achieve this goal. The covenants restricting the property's use will need to be removed before the property can be marketed in a productive manner. The interests of those benefited and those bound by all covenants of the 1972 deed were merged by title with the reacquisition of the property in 1989, except for a covenant relating to the bell in the Church tower. This is to affirm the extinguishing of all covenants contained in the 1972 deed; noting that this extinguishing of covenants does not apply to the covenant relating to the Church bell.

Ms. Taylor said this is a building that was once a church. It is located between the Fire Department and Library. There were a variety of covenants placed on the building by the City in 1972. Since the City placed the covenants, the City can remove them. The covenant for the bell was placed by a previous owner and the City cannot remove that. She said once the covenants are removed, the City will follow its process for sale of nontax-deeded properties. She said it is in the Historic District and is designated a historic structure.

A motion was made by Mr. Simonds and seconded by Mr. Raymond to adopt Resolution 2017-25 Authorize Removal of Covenants from 106 Broad Street.

Mr. Simonds read the resolution into the record.

Ms. Taylor read the specific covenants, which limit its use.

Mayor Lovett opened the public hearing.

Bernie Folta, Ward 3, suggested the Library could connect to the church for expansion. He also suggested the Claremont Historical Society (he is a member, but was speaking as a citizen) and the Library could use the facility.

Mr. Koloski said he would love to see the Historical Society be closer to the middle of the City.

Mr. McNutt said if the building is on the National Register of Historic Places, that would put it in line for a 20% grant. If not, it should be looked at to list it. He said he would be happy to meet with members of the Historical Society to talk about it. Mr. Folta said he will mention that to the President of the Historical Society.

Voice vote: motion carried 7-0.

Ordinance 553 Revision to Division of Highway Authority – First Reading

The purpose of this proposed change is to clarify the authority of the Public Works Department to maintain and, if necessary, remove vegetation and trees along City streets and sidewalks. The Public Works Department has historically undertaken these tasks, but the authority to do so is not expressly delegated to the Department in the Claremont City Code.

Enactment of this ordinance will clarify the authority of the Public Works Department to maintain and, if necessary, remove vegetation and trees along City streets and sidewalks.

Ms. Taylor said over the years there has been an informal policy for Public Works to handle overhanging trees and brush. This ordinance formalizes authority permitted by state law. The City does not have a tree warden, so this delegates to Public Works the authority to deal with problem trees.

A motion was made by Mr. Koloski and seconded by Mr. Simonds to adopt Ordinance 553 Revision to Division of Highway Authority on first reading.

Mr. Koloski read the Explanation of Proposed Action into the record.

Mayor Lovett questioned whether or not this was too generic.

Ms. Taylor said the ordinance and state law does not apply to trees on private property. If Public Works determines a tree on private property is hazardous, then they have to enter into

negotiations to remove the hazard. For trees that are ornamental gifts, those have to come to Council. Public Works would have to identify that issue.

Scott Sweet, Public Works Director, said when they get called for certain tree issues, they try to contact the abutter.

Ms. Taylor said the purpose of the ordinance is to clarify that Public Works gets the tree complaint. There is a separate policy with more details.

There was a discussion of the policy.

Ms. Taylor said that Council doesn't have to do this at all and the City can go on as it has been.

Mayor Lovett said the ordinance should reflect Public Works authority and landowners' responsibilities. Ms. Taylor said the City cannot dictate a private property owner's responsibility.

A motion was made by Mr. Koloski and seconded by Mr. Damren to table the motion until March 8th.

Voice vote: motion carried 7-0.

Preservation and Display of Bell

Ms. Taylor said it might be premature to discuss this. The bell is very secure in the tower. It might be better to wait until it is decided what to do with the building and then discuss the bell.

Mr. Koloski asked if it would be a good idea to bring in someone to tell how much it will cost to remove the bell. Ms. Taylor said that would be part of developing the RFP (Request for Proposal).

Mr. McNutt said that may be part of the negotiations.

Resolution 2017-26 Establish Emergency Plant Replacement Reserve-Water – Public Hearing

Withdrawn

Resolution 2017-27 Establish Emergency Plant Replacement Reserve-Sewer – Public Hearing

Withdrawn

Resolution 2017-28 Establish Stabilization and Contingency Reserve-Water – Public Hearing

Withdrawn

Resolution 2017-29 Establish Stabilization and Contingency Reserve-Sewer – Public Hearing

Withdrawn

Resolution 2017-30 Establish System Replacement Reserve-Water – Public Hearing

Withdrawn

Resolution 2017-31 Establish System Replacement Reserve-Sewer – Public Hearing

Withdrawn

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett reviewed the February 22nd agenda.

Ms. Taylor said for the multi-year agreements for Primex, they will have to be broken out into two resolutions. We are one day short of the required notice under Council Rules. Primex's deadline is February 24th. We'll post the notice tomorrow and Council will have to suspend its Rules to discuss. Also, the Fire Department received a \$6,000 grant for EMS equipment and they have to send it back before the March 8th meeting. This will also be placed on the agenda and Council will also have to suspend its Rules for it. It has to be back to them by the 24th.

Ms. Towle would like to keep the strategic planning session in mind. Mayor Lovett said it would probably be on the second meeting in March, or the first meeting in March, if possible.

Mayor Lovett asked for a Current Use update. Mr. McNutt is working with the Assessing office to get the information and will present it to the Council at the second meeting in March or the first meeting in April.

Mayor Lovett said that Mr. Temple brought up the idea of having an operating budget and a capital budget. Mr. McNutt said he would not operate under anything but an operating and capital plan.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 7:59 p.m., a motion was made by Mr. Damren and seconded by Mr. Raymond to adjourn.

Voice vote: motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council